

NATIONAL COMMISSIONS SC ST BC

EVOLUTION FROM SPECIAL OFFICER → COMPOSITION, APPOINTMENT, TENURE AND → SIX COMMON DUTIES AND → CIVIL-COURT POWERS, REPORTS, MEMORANDA → NCSC, NCST AND NCBC → ARTICLES 341, 342 AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

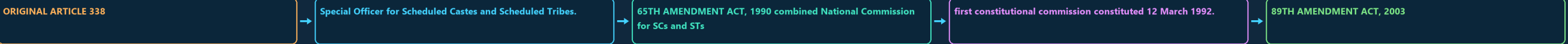
CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 EVOLUTION FROM SPECIAL OFFICER TO THREE CONSTITUTIONAL COMMISSIONS

EVOLUTION FROM SPECIAL OFFICER TO THREE CONSTITUTIONAL COMMISSIONS ORIGINAL ARTICLE 338 SPECIAL OFFICER FOR SCHEDULED CASTES AND SCHEDULED TRIBES. 65TH AMENDMENT ACT, 1990 COMBINED NATIONAL COMMISSION FOR SCS

FIRST CONSTITUTIONAL COMMISSION CONSTITUTED 12 MARCH 1992. 89TH AMENDMENT ACT, 2003 ARTICLE 338 RETAINED FOR NCSC + ARTICLE 338A INSERTED SEPARATE COMMISSIONS OPERATIONAL 19 FEBRUARY 2004.



CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- ORIGINAL ARTICLE 338 - Special Officer for Scheduled Castes and Scheduled Tribes. 65TH AMENDMENT ACT, 1990 combined National Commission for SCs and STs - first constitutional commission constituted 12 March 1992.	89TH AMENDMENT ACT, 2003 - Article 338 retained for NCSC + Article 338A inserted for NCST - separate commissions operational 19 February 2004. - Indra Sawhney (1992) → permanent backward-class body.	- NCBC Act, 1993 → statutory NCBC. 102ND AMENDMENT ACT, 2018 - Article 338B + Article 342A + Article 366(26C) - constitutional NCBC operational 15 August 2018.	105TH AMENDMENT ACT, 2021 - State/UT own-list competence made explicit from 15 September 2021.

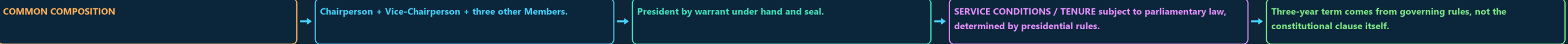
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A non-statutory multi-member commission was created by executive resolution in 1978 and renamed in 1987, while the constitutional Special Officer architecture continued.

01

STAGE 01 COMPOSITION, APPOINTMENT, TENURE AND SELF-REGULATED PROCEDURE

COMPOSITION, APPOINTMENT, TENURE AND SELF-REGULATED PROCEDURE COMMON COMPOSITION CHAIRPERSON + VICE-CHAIRPERSON + THREE OTHER MEMBERS. PRESIDENT BY WARRANT UNDER HAND AND SEAL. SERVICE CONDITIONS

TENURE SUBJECT TO PARLIAMENTARY LAW, DETERMINED BY PRESIDENTIAL RULES. THREE-YEAR TERM COMES FROM GOVERNING RULES, NOT THE CONSTITUTIONAL PROCEDURE EACH COMMISSION MAY REGULATE ITS OWN PROCEDURE.



CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- COMMON COMPOSITION - Chairperson + Vice-Chairperson + three other Members.	- President by warrant under hand and seal. - SERVICE CONDITIONS / TENURE subject to parliamentary law, determined by presidential rules.	- Three-year term comes from governing rules, not the constitutional clause itself. - PROCEDURE each Commission may regulate its own procedure.	- CONSTITUTIONAL STATUS entrenches existence, mandate and report route. - LIMIT constitutional status does not automatically guarantee timely appointments, regional reach, staff capacity, data quality or acceptance of

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 338, 338A and 338B convert failures of group safeguards into investigable complaints, evidence-based monitoring and reports answerable before legislatures.

02

STAGE 02 SIX COMMON DUTIES AND THE COMPLAINT-TO-POLICY ACCOUNTABILITY CYCLE

SIX COMMON DUTIES AND THE COMPLAINT-TO-POLICY ACCOUNTABILITY CYCLE COMMON DUTIES UNDER CLAUSE (5) INVESTIGATE AND MONITOR SAFEGUARDS. INQUIRE INTO SPECIFIC COMPLAINTS OF DEPRIVATION. PARTICIPATE AND ADVISE IN SOCIO-ECONOMIC DEVELOPMENT PLANNING.

EVALUATE DEVELOPMENT PROGRESS. PRESENT ANNUAL AND OTHER REPORTS TO PRESIDENT. RECOMMEND MEASURES FOR EFFECTIVE IMPLEMENTATION AND PROTECTION. PERFORM OTHER SPECIFIED FUNCTIONS.

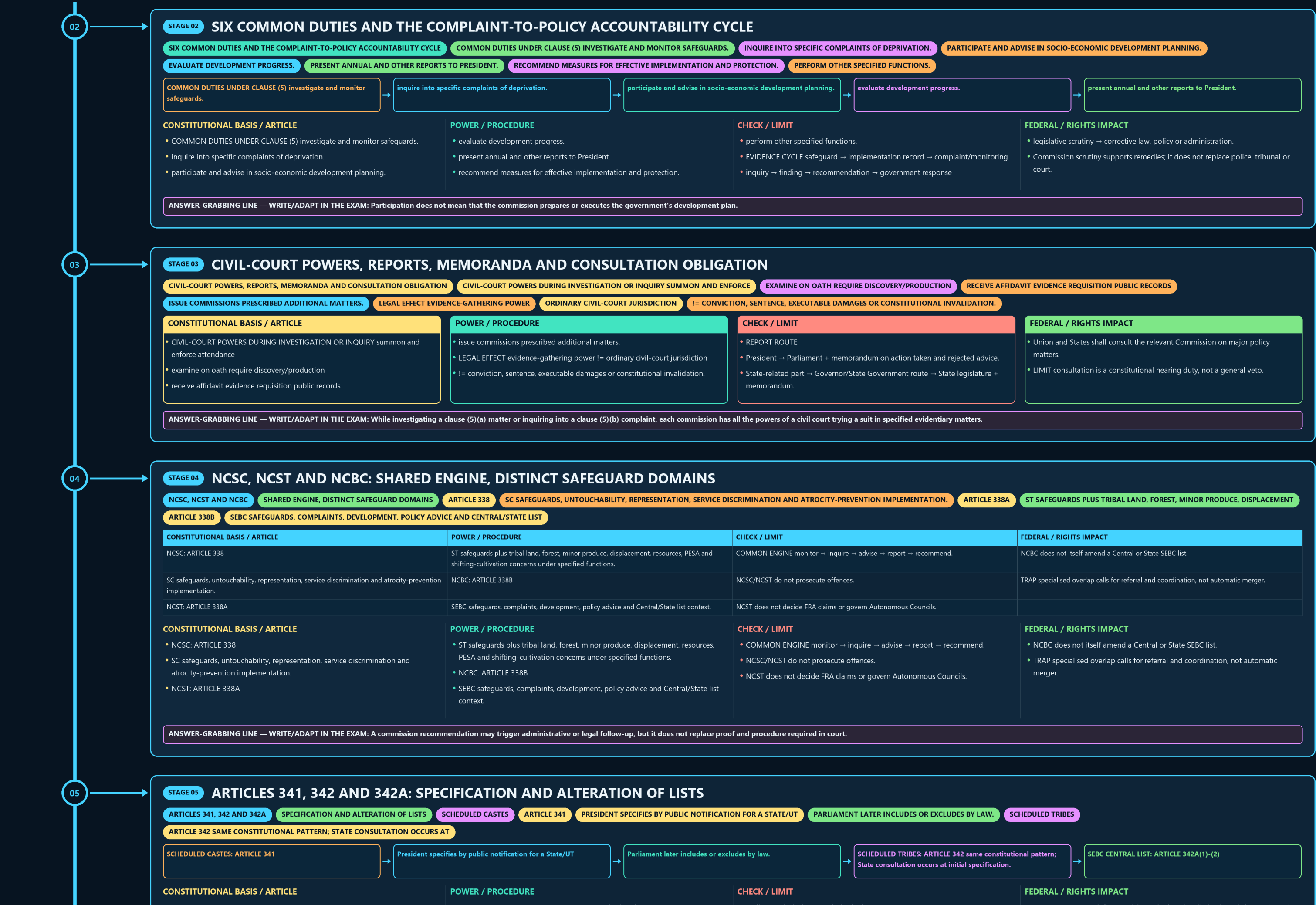


CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- COMMON DUTIES UNDER CLAUSE (5) investigate and monitor safeguards. - inquire into specific complaints of deprivation. - participate and advise in socio-economic development planning.	- evaluate development progress. - present annual and other reports to President. - recommend measures for effective implementation and protection.	- perform other specified functions. - EVIDENCE CYCLE safeguard → implementation record → complaint/monitoring - inquiry → finding → recommendation → government response	- legislative scrutiny → corrective law, policy or administration. - Commission scrutiny supports remedies; it does not replace police, tribunal or court.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Participation does not mean that the commission prepares or executes the government's development plan.

03

STAGE 03 CIVIL-COURT POWERS, REPORTS, MEMORANDA AND CONSULTATION OBLIGATION



CONSTITUTIONAL BASIS / ARTICLE • NCSC: ARTICLE 338 • SC safeguards, untouchability, representation, service discrimination and atrocity-prevention implementation. • NCST: ARTICLE 338A	POWER / PROCEDURE • ST safeguards plus tribal land, forest, minor produce, displacement, resources, PESA and shifting-cultivation concerns under specified functions. • NCBC: ARTICLE 338B • SEBC safeguards, complaints, development, policy advice and Central/State list context.	CHECK / LIMIT • COMMON ENGINE monitor → inquire → advise → report → recommend. • NCSC/NCST do not prosecute offences. • NCST does not decide FRA claims or govern Autonomous Councils.	FEDERAL / RIGHTS IMPACT • NCBC does not itself amend a Central or State SEBC list. • TRAP specialised overlap calls for referral and coordination, not automatic merger.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A commission recommendation may trigger administrative or legal follow-up, but it does not replace proof and procedure required in court.			

05

STAGE 05 ARTICLES 341, 342 AND 342A: SPECIFICATION AND ALTERATION OF LISTS			
ARTICLES 341, 342 AND 342A	SPECIFICATION AND ALTERATION OF LISTS	SCHEDULED CASTES	ARTICLE 341
PRESIDENT SPECIFIES BY PUBLIC NOTIFICATION FOR A STATE/UT			
PARLIAMENT LATER INCLUDES OR EXCLUDES BY LAW.			
SCHEDULED TRIBES			
ARTICLE 342 SAME CONSTITUTIONAL PATTERN; STATE CONSULTATION OCCURS AT			
SCHEDULED CASTES: ARTICLE 341	President specifies by public notification for a State/UT	Parliament later includes or excludes by law.	SCHEDULED TRIBES: ARTICLE 342 same constitutional pattern; State consultation occurs at initial specification.
SEBC CENTRAL LIST: ARTICLE 342A(1)-(2)			
CONSTITUTIONAL BASIS / ARTICLE • SCHEDULED CASTES: ARTICLE 341 • President specifies by public notification for a State/UT • Parliament later includes or excludes by law.	POWER / PROCEDURE • SCHEDULED TRIBES: ARTICLE 342 same constitutional pattern; State consultation occurs at initial specification. • SEBC CENTRAL LIST: ARTICLE 342A(1)-(2) • President specifies for Central Government purposes	CHECK / LIMIT • Parliament includes or excludes by law. • STATE / UT LIST: ARTICLE 342A(3) • State or UT may by law prepare and maintain its own list for own purposes.	FEDERAL / RIGHTS IMPACT • ARTICLE 366(26C) defines socially and educationally backward classes through Article 342A. • CORE DISTINCTION • Commission advice informs process; the constitutionally named authority changes legal status.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Subject to parliamentary law, their conditions of service and tenure are determined by presidential rules.			

06

STAGE 06 102ND-105TH FEDERAL TRAJECTORY AND JAISHRI LAXMANRAO PATIL (2021)			
102ND-105TH FEDERAL TRAJECTORY AND JAISHRI LAXMANRAO PATIL (2021)	102ND AMENDMENT, 2018 CONSTITUTIONAL NCBC + ORIGINAL ARTICLE 342A	JAISHRI LAXMANRAO PATIL (2021) MAJORITY READ THE 102ND AMENDMENT	THE MARATHA QUOTA ALSO FAILED THE SEPARATE 50% CEILING
105TH AMENDMENT, 2021	CENTRAL LIST CONFINED TO CENTRAL PURPOSES	STATE/UT OWN LISTS EXPRESSLY RESTORED/CLARIFIED IN ARTICLE 342A(3)	ARTICLE 338B(9) CONSULTATION EXCEPTION FOR THAT LIST-MAKING PURPOSE.
102ND AMENDMENT, 2018 constitutional NCBC + original Article 342A list wording.			
Jaishri Laxmanrao Patil (2021) majority read the 102nd Amendment as displacing independent State SEBC identification	the Maratha quota also failed the separate 50% ceiling analysis.		105TH AMENDMENT, 2021
CONSTITUTIONAL BASIS / ARTICLE • 102ND AMENDMENT, 2018 constitutional NCBC + original Article 342A list wording. • Jaishri Laxmanrao Patil (2021) majority read the 102nd Amendment as displacing independent State SEBC identification • the Maratha quota also failed the separate 50% ceiling analysis.	POWER / PROCEDURE • 105TH AMENDMENT, 2021 • Central List confined to Central purposes • State/UT own lists expressly restored/clarified in Article 342A(3)	CHECK / LIMIT • Article 338B(9) consultation exception for that list-making purpose. • TRAP reservation ceiling, identification authority and Commission consultation are separate constitutional questions. • LIMIT the 105th Amendment did not itself decide every quota, inclusion or creamy-layer dispute.	FEDERAL / RIGHTS IMPACT • 105TH AMENDMENT, 2021
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Maratha reservation law also failed the Court's 50 per cent ceiling analysis; that holding should not be collapsed into the separate Article 342A federal issue.			

07

STAGE 07 DAVINDER SINGH (2024), SUB-CLASSIFICATION AND THE CREAMY-LAYER BOUNDARY			
DAVINDER SINGH (2024), SUB-CLASSIFICATION AND THE CREAMY-LAYER BOUNDARY	DAVINDER SINGH (2024)	STATES MAY CREATE EVIDENCE-BASED SUB-CLASSIFICATION WITHIN SCHEDULED CASTES TO	CONDITIONS QUANTIFIABLE AND DEMONSTRABLE MATERIAL
NO DELETION FROM OR ALTERATION OF THE ARTICLE 341	JUDICIAL REVIEW REMAINS.	OVERRULED BOUNDARY	RATIONAL CLASSIFICATION
Davinder Singh (2024)			
States may create evidence-based sub-classification within Scheduled Castes to distribute reservation benefits more equitably.	CONDITIONS quantifiable and demonstrable material — rational classification		no deletion from or alteration of the Article 341 Presidential List
CONSTITUTIONAL BASIS / ARTICLE • Davinder Singh (2024) • States may create evidence-based sub-classification within Scheduled Castes to distribute reservation benefits more equitably.	POWER / PROCEDURE • no deletion from or alteration of the Article 341 Presidential List • judicial review remains. • OVERRULED BOUNDARY	CHECK / LIMIT • E.V. Chinnaiah was overruled on the bar against SC sub-classification. • CREAMY-LAYER CAUTION separate judicial opinions discussed exclusion ideas • do not present them as one unanimous, enacted SC/ST creamy-layer rule.	FEDERAL / RIGHTS IMPACT • COMMISSION ROLE evidence, consultation and monitoring may inform policy but do not replace valid law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Maratha reservation law also failed the Court's 50 per cent ceiling analysis; that holding should not be collapsed into the separate Article 342A federal issue.

07

STAGE 07 DAVINDER SINGH (2024), SUB-CLASSIFICATION AND THE CREAMY-LAYER BOUNDARY

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STATES MAY CREATE EVIDENCE-BASED SUB-CLASSIFICATION WITHIN SCHEDULED CASTES TO

CONDITIONS QUANTIFIABLE AND DEMONSTRABLE MATERIAL

RATIONAL CLASSIFICATION

NO DELETION FROM OR ALTERATION OF THE ARTICLE 341

JUDICIAL REVIEW REMAINS.

OVERRULED BOUNDARY

Davinder Singh (2024)

States may create evidence-based sub-classification within Scheduled Castes to distribute reservation benefits more equitably.

CONDITIONS quantifiable and demonstrable material → rational classification

no deletion from or alteration of the Article 341 Presidential List

CONSTITUTIONAL BASIS / ARTICLE

- Davinder Singh (2024)
- States may create evidence-based sub-classification within Scheduled Castes to distribute reservation benefits more equitably.
- CONDITIONS quantifiable and demonstrable material → rational classification

POWER / PROCEDURE

- no deletion from or alteration of the Article 341 Presidential List
- judicial review remains.
- OVERRULED BOUNDARY

CHECK / LIMIT

- E.V. Chinniah was overruled on the bar against SC sub-classification.
- CREAMY-LAYER CAUTION separate judicial opinions discussed exclusion ideas
- do not present them as one unanimous, enacted SC/ST creamy-layer rule.

FEDERAL / RIGHTS IMPACT

- COMMISSION ROLE evidence, consultation and monitoring may inform policy but do not replace valid law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 105th Amendment added a proviso to Article 338B(9): the clause does not apply for the purposes of Article 342A(3), the State/UT own-list power.

08

STAGE 08 INSTITUTIONAL GAPS, PRELIMS TRAPS, PYQ ROUTES AND ANSWER SYNTHESIS

INSTITUTIONAL GAPS, PRELIMS TRAPS, PYQ ROUTES AND ANSWER SYNTHESIS

IMPLEMENTATION GAPS VACANCIES + DELAYED REPORTS + WEAK REGIONAL

REFORM TRANSPARENT APPOINTMENTS

TIME-BOUND STAFFING

COMMON INTAKE/REFERRAL

JOINT INQUIRY PROTOCOL

PUBLIC ACTION-TAKEN DASHBOARD

RESEARCH CAPACITY

IMPLEMENTATION GAPS vacancies + delayed reports + weak regional access + fragmented complaint data poor

REFORM transparent appointments → time-bound staffing → common intake/referral

joint inquiry protocol → public action-taken dashboard

research capacity → reasoned government response.

PRELIMS FIREWALL

CONSTITUTIONAL BASIS / ARTICLE

- IMPLEMENTATION GAPS vacancies + delayed reports + weak regional access + fragmented complaint data poor recommendation tracking + overlapping forums.
- REFORM transparent appointments → time-bound staffing → common intake/referral
- joint inquiry protocol → public action-taken dashboard
- research capacity → reasoned government response.
- PRELIMS FIREWALL

POWER / PROCEDURE

- 338A NCST
- 338B NCBC
- Chair + Vice-Chair + three Members civil-court powers only for inquiry
- recommendations generally advisory
- 341 SC

CHECK / LIMIT

- 342A Central/State SEBC architecture.
- PYQ ROUTES
- 2018 NCSC/minority reservation + umbrella commission
- 2020 constitutionalisation
- 2022 NCBC

FEDERAL / RIGHTS IMPACT

- 2024 ST list.
- MAINS SPINE constitutional purpose → common powers → distinct domain → legal limit
- case/amendment → implementation gap → coordinated-specialisation verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Overlapping discrimination or welfare failures may engage several commissions, but each body retains its own constitutional mandate rather than becoming an all-purpose authority.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

THE BIG PICTURE

PART A — NCSC (ART 338) & NCST (ART

PART B — NCBC (ART 338-B)

PART C — LINGUISTIC MINORITIES (ART 350-B)

COMPOSITION (EACH)

CHAIRPERSON + VICE-CHAIRPERSON + 3 MEMBERS, APPOINTED BY

INVESTIGATE/MONITOR SC/ST SAFEGUARDS; INQUIRE INTO COMPLAINTS; ADVISE ON &

OPTIONAL DOCTRINE / CASE

- THE BIG PICTURE
- PART A — NCSC (Art 338) & NCST (Art 338-A)
- PART B — NCBC (Art 338-B)
- PART C — LINGUISTIC MINORITIES (Art 350-B)

ADVANCED LIMIT

- Composition (each): Chairperson + Vice-Chairperson + 3 members, appointed by the President by
- Functions: investigate/monitor SC/ST safeguards; inquire into complaints; advise on & evaluate
- Civil-court powers while investigating (summon persons, require documents, receive affidavit evidence,
- NCST extra duties (tribal-specific): safeguards under forest/mining law, minor forest produce, PESA/FRA

COMPARATIVE NUANCE

- Composition: Chairperson + Vice-Chairperson + 3 members (President-appointed).
- Centre & states must consult the NCBC on all major policy matters affecting SEBCs.
- CAUTION: 105th Amendment (2021): restored states'/UTs' power to make their own SEBC/OBC lists (after the SC's
- Special Officer for Linguistic Minorities, appointed by the President → investigates safeguards for

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.